IN THE CIRCUIT COURT HELD AT WEIJA ON FRIDAY THE 20TH DAY OF JUNE, 2025 BEFORE H/H JOSHUA C. ABAIDOO THE CIRCUIT COURT JUDGE

CASE №. C3/02/2025

THE REPUBLIC

VRS

FRANCIS AMEWUGA

ACCUSED PERSON PRESENT

C/INSP. ANANE – ANTWI FOR PROSECUTION PRESENT

FELIX LARTEY FOR THE ACCUSED PERSON

JUDGMENT

The accused person was charged with one count of the offence of **Causing Harm** contrary to section 69 of the Criminal Offences Act 1960, Act 29.

The accused person pleaded "not guilty" to the charge made against him.

The prosecution then assumed the burden to prove the charges levelled against the accused person beyond reasonable doubt in accordance with Section 13 (1) of the Evidence Act, 1975 NRCD 323.

Under section 11(2) of Evidence Act, 1975 NRCD 323, in criminal cases the burden of proof is on the prosecution throughout. The prosecution is required to produce sufficient evidence on a fact essential to establish the guilt of the accused, so that on all the evidence a reasonable mind could find the existence of that fact beyond reasonable doubt.

BRIEF FACTS

The brief facts of the case as narrated on the fact sheet attached to the charge sheet are that both the complainant Charles Amponsah who is a teacher and the accused person Francis Amewugah who is a coconut seller are tenants in a house at Ash-Bread, a locality within the jurisdiction of the court. The accused person allegedly left his I-Phone 7 mobile phone valued GHS 1,300 in a vehicle popularly known as "Abossey Macho" which was parked in their house and left to town. On his return the I-phone that he left in the car was nowhere to be found. He rather found a GHS 20 note in the vehicle. He asked the complainant whether the GHS 20 belonged to him and whether he had seen the phone. The complainant denied seeing the I-Phone but claimed ownership of the GHS 20. The accused gave the GHS 20 to the complainant and left to town to sell his coconut. On his returned he confronted the complainant with the reason that since he claimed ownership of the GHS 20 then he must be the one who took his I-Phone.

The accused forcibly entered the room of the complainant to search for his phone which was resisted by the complainant. In the course of this the accused inflicted matchet wounds on the left thigh, left arm and fingers of the complainant. The accused on realizing the injuries caused reported himself at the New Weija Police Station.

The complainant had to undergo surgery at the Korle Bu Teaching Hospital to repair the damage caused by the injuries.

CASE FOR THE PROSECUTION

The evidence of the prosecution witnesses are as stated in the witness statements of PW1 Charles Amponsah and PW2 D/Insp. Smart Mensah which were adopted as their evidences in chief including the following exhibits;-

Exhibit A:- A photograph of the stitched left arm of PW1 Charles Amponsah

Exhibit B:- A photograph of the injury on the left thigh of PW1

Exhibit C:- A photograph of the face and injuries on the left arm and fingers of PW1

Exhibit D:- The endorsed Police Medical Form of PW1

Exhibit E:- The Investigation Caution statement (ICS) of the accused person.

Exhibit F:- The Charge Caution statement (CCS) of the accused person.

The brief facts above fairly and accurately summarise the case for the prosecution.

CASE FOR THE ACCUSED PERSON

In his own evidence in chief the accused person admitted the confrontation between him and the complainant over his lost I-Pone 7 but stated that the confrontation degenerated into a fight. He also stated that the complainant hit him several times with his cooking utensils and a gas cylinder when he went to him to inquire about his lost phone and that at the time of the incident he had just returned from selling coconut so he had his cutlass with him. He admitted that it was his cutlass which caused the injuries on the complainant but denied that the injuries were caused intentionally. He stated that there have been a lot of fights between them previously in which he never caused any harm to the complainant and that in this instance he was using his cutlass to block the cylinder and this ended up in the injury to the complainant. A photograph of the gas cylinder was tendered in evidence through PW1 during cross examination by counsel for the accused and marked Exhibit 1. He also stated that he contributed an amount of GHS 1,100 to defray part of the medical bills of the complainant.

THE LAW

Section 69 of the Criminal Offences Act 1960, Act 29 under which the accused person has been charged states that;

"a person who intentionally and unlawfully causes harm to any other person commits a second-degree felony".

The prosecution is therefore required to prove that the accused

(i) Caused a bodily hurt, disease, or disorder, whether permanent or temporary to PW1,

(ii) Caused the harm intentionally or negligently,

(iii) Caused the harm unlawfully or without any justification specified under the law.

Section 11(3) of the criminal and other offences Act 1960, Act 29 states that; "A person who does an act of such a kind or in a manner that, if reasonable caution and observation had been used, it would appear to that person

(a) that the act would probably cause or contribute to cause an event or

(b) that there would be great risk of the act causing or contributing to cause an event, intends for the purposes of this section, to cause that event until it is shown that that person believed that the act would probably not cause or contribute to cause the event, or that there was not an intention to cause or contribute to cause it.

P. K. Twumasi in his book Criminal Law in Ghana at page 77 states that intention like any state of mind is incapable of direct proof; it is always inferred from proven facts.

From the totality of the evidence led, there is no dispute that the accused person caused the injuries to the complainant by use of a matchet. This is evident from the accused person's own admission in his evidence in chief and his investigation caution statement.

The question to be answered is whether the harm was unlawfully caused to the PW1 by the accused or was the harm caused unlawful?

Section 76 of the Criminal Offences Act 1960, Act 29 defines unlawful harm as harm which is intentionally or negligently caused without any of the justifications mentioned in chapter one of Part II of the Act i.e. from section 30 to section 45 of the Criminal Offences Act 1960, Act 29.

As to the establishment of whether or not the harm caused is unlawful the grounds on which use of force or harm may be justified are outline under section 31 of Act 29/60 as follows;

a. express authority given by an enactment,
b. Authority to execute the lawful sentence or order or a court,
c. The authority of an officer to keep the peace or of a court to preserve order,
d. An authority to arrest and detain for felony,
e. An authority to arrest, detain, or search a person otherwise than for felony,
f. A necessity for the prevention of or defence against a criminal offence,
g. A necessity for the defence of property or possession or for overcoming the obstruction to the exercise of lawful rights.
h. A necessity for preserving order on board a vessel,
i. An authority to correct a child, servant, or other similar person, for misconduct,
j. The consent of the person against whom the force is used.

These are the conditions under which use of force or harm is permitted by law.

It is clear from the evidence led so far that the facts of the case regarding the harm caused, do not fall under any of the justifications in chapter 1 of Part II of Act 29. The accused person had no lawful authority to forcibly enter the apartment of the PW1 to search for his phone. The harm was unlawfully caused and was therefore unlawful.

As to whether or not the accused person intentionally caused the unlawful harm to PW1 the law, Per P K Twumasi supra requires an examination of proven facts both prior and

subsequent to the incident to establish whether a necessary inference of intention behind the act can be made.

The proven facts here are that the accused after giving the GHS 20 to PW1, went away to town to sell his coconut and returned to confront PW1 on the loss of his phone and search his room for it while bearing a matchet. This suggests that he formed the intention to confront and forcibly search the room of PW1 after he had handed over the GHS 20 to him. A necessary inference of an intention to cause harm, in my view, cannot be safely made from this finding alone. Subsequent acts will have to be considered to establish whether or not there was an intention to cause harm.

The next fact is that the accused after the incident, submitted himself to the police for investigation and while in custody an effort was made to contribute an amount of GHS 600 to the medical cost of treatment which, per the evidence of PW2 on 31st January, 2025, was given to PW1 through one uncle Frank Damptey who is a neighbour and associate of both the accused and PW1, in the presence of the hospital authorities. The family of the accused person also made overtures to contribute to the cost of treatment of PW1 which according to him, he rejected (see the cross examination of PW1 on 21st January, 2025). Another fact worth considering is that from Exhibit E i.e. the investigation caution statement of the accused, he stated that PW1 attempted to hit him with a gas cylinder i.e. Exhibit 1. He tried to block the cylinder with the matchet which ended in the injury caused to PW1. The question from this is; given the curved surface of a gas cylinder as in Exhibit 1, is there a reasonable probability that a matchet blow to the surface of the cylinder to block or stop the cylinder can deflect the direction of the matchet to cause injury? My answer is yes. The decision to do so was voluntary and injury from this act was reasonably foreseeable.

From all the foregoing I am of the considered opinion that having formed the intention to search the room of the complainant forcibly without a prior agreement to do so and armed with a matchet, the probability of causing injury from the use of the matchet was reasonably foreseeable. The decision to use the matchet to block a gas cylinder from PW1 who was resisting an unlawful entry into his apartment was unreasonable in the sense that there was a high risk of injury being caused by the use of the matchet.

In the case of **Akorful v. The State [1963] 2 GLR 371, SC** it was held that there is a rebuttable presumption that an accused person intended to cause death if it would appear to any reasonable person that if he did not use reasonable caution and observation, there will be great risk of his act causing or contributing to cause death.

The evidence led by the prosecution lead to the conclusion that the accused person knew or reasonably ought to have known that bearing a matchet in the circumstances of this case (i.e. forcible entry with a matchet and using it to block a gas cylinder) could probably lead to injury from the matchet. A necessary inference of an intention to cause unlawful harm to PW1 can therefore be safely made from the proven facts (**See also section 11(3) of Act 29 supra).**

The acts of the accused person and his family subsequent to the incident put together, in my view, are not sufficient to rebut the presumption of the intention to cause harm neither do they raise any reasonable doubt in the case of the prosecution. The harm caused to PW1 was therefore intentional.

I therefore find the accused person Francis Amewugah guilty of the offence of **Causing Harm** contrary to Section 69 of the Criminal and Other Offences Act 1960, Act 29 and convict him accordingly.

Sentencing

In coming to this decision, I have taken into consideration the severity of the injury caused to PW1 and the pain suffered by him through his treatment. I have also taken into consideration the high level of intolerance, recklessness, disrespect for law and order and the commission of violent offences among the youth in the community as well as a consideration of the fact that the accused person is a first-time offender and the plea in mitigation put in on his behalf by his counsel on record and Theophilus Gyamfi-Bonsu Esq. as a friend of the court.

I will therefore impose a sentence that will be fair taking into consideration all the circumstances of this case, as well as punitive enough to serve as a warning and deterrent to like-minded persons in the community.

The accused person is therefore sentenced to 800 penalty units or in default 3 years in prison with hard labour.

R/O

The accused is to compensate the victim with GHS 12,000 for pain and suffering.

(SGD)

(JOSHUA CALEB ABAIDOO)

CIRCUIT COURT JUDGE